

Please provide the name of your district	Timestamp	Does your district provide central office administrators with a district issued cell phone?	If yes, what is the monthly expense paid by the district per cell phone?	Does your district provide building administrators with a district issued cell phone?	If yes, what is the monthly expense paid by the district per cell phone?	Does your district provide reimbursement to your central office administrators for utilizing their personal cell phone?	If yes, what is the monthly reimbursement provided by the district to each administrator?	Does your district provide reimbursement to your building level administrators for utilizing their personal cell phone?	If yes, what is the monthly reimbursement provided by the district to each administrator?
Mentor Public Schools	3/7/19 6:28	No		No		Yes	\$80 per month	Yes	\$80 per month
Avon Lake	3/7/19 7:14	No		No		Yes	\$75 per month	Yes	\$75 per month
Chagrin Falls	3/7/19 7:16	No		No		Yes	50	Yes	50
Cuyahoga Falls City School District	3/7/19 8:16	Yes	Approximately \$40.00 per phone	No		No		No	
Westlake	3/7/19 9:02	Yes	Only one CO Administrator takes it.	No		No	We are likely to add this over the summer.	No	
Garfield Heights City Schools	3/7/19 10:54	No		No		Yes	\$50 per month	Yes	\$50 per month
Hudson City School District	3/7/19 11:37	No		No		Yes	\$45 or \$65 per month based on position	Yes	\$45 or \$65 per month based on position
Akron Public Schools	3/7/19 14:55	Yes	25 cell phones, not provided to all central office. Cost is about \$575/month	No	N/A	No	N/A	No	N/A
Canton City Schools	3/7/19 17:35	Yes		Yes		No		No	
Oberlin	3/8/19 9:33	No		No		Yes	50	Yes	50
CHUH	3/8/19 13:36	No		No		Yes	\$92.00	Yes	\$92.00
Riverside Local	3/12/19 13:15	Yes	\$50.00	No		Yes		No	

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Strongsville.. We do however have district phones for our network manager, transportation supervisor and head of maintenance. Those are a monthly bill on average 36.55-61.83. We are taking away from maintenance as they are not using them.	3/7/19 8:55	No		No		No		No	
ESC NEO	3/7/19 11:24	No		No		Yes	\$25 we also provide reimbursement for data, not to exceed \$40 monthly for data and cell use, must provide monthly carrier invoice	No	

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Faith Palmucci, Associate Director, People Office	3/11/19 16:06	No	n/a	No	n/a	Yes	Varies - per approval of Supt. (\$50 or \$100 per month; plus \$50 or \$250 equipment allowance every 1 or 2 yrs - as determined by Supt.)	Yes	Varies - per approval of Supt. (\$50 or \$100 per month; plus \$50 or \$250 equipment allowance every 1 or 2 yrs - as determined by Supt.)
LH Local Schools	3/11/19	Yes		Yes		Yes	\$30.00	Yes	\$30 Note: Administrators have the option to either use a district issued cell phone or receive \$30.00 per month reimbursement for use of their personal cell phone.

PROPOSED CELL PHONE STIPENDS

	Position	Monthly Stipend	# of Positions	District Cost
1	Director of Athletics	\$65.00	1	\$65.00
2	Director of Business Services	\$65.00	1	\$65.00
3	Director of Curriculum & Instruction	\$50.00	1	\$50.00
4	Director of Human Resources	\$50.00	1	\$50.00
5	Dir of Pupil Services	\$50.00	1	\$50.00
6	Elementary Principal	\$50.00	4	\$200.00
7	Elementary Assistant Principal	\$50.00	1	\$50.00
8	Food Service Supervisor	\$50.00	1	\$50.00
9	High School Assistant Principal	\$50.00	3	\$150.00
10	High School Principal	\$50.00	1	\$50.00
11	Middle School Assistant Principal	\$50.00	2	\$100.00
12	Middle School Principal	\$50.00	1	\$50.00
13	Superintendent	\$65.00	1	\$65.00
14	Systems Engineer	\$65.00	1	\$65.00
15	Technology Coordinator	\$65.00	1	\$65.00
16	Transportation Supervisor	\$65.00	1	\$65.00
17	Transportation Supervisor (Assistant)	\$50.00	1	\$50.00
18	Treasurer	\$65.00	1	\$65.00
TOTAL MONTHLY COST				\$1,305.00

Cellular Telephone Reimbursement Schedule

Job Title	Reimbursement Amount	Stipend (with/ surcharge, tax) 15%
Superintendent	\$40.00	\$46.00
Business Director	\$60.00	\$69.00
Build/Grounds Supervisor	\$60.00	\$69.00
Technology Coordinator	\$40.00	\$46.00
Asst. Superintendent	\$30.00	\$34.50
Dir Curriculum/Inst.	\$20.00	\$23.00
Coord. Community Service	\$20.00	\$23.00
Treasurer	\$20.00	\$23.00
Transportation Supervisor	\$25.00	\$28.75
HS Principal	\$30.00	\$34.50
HS Asst. Principal x2	\$20.00	\$23.00
	\$20.00	\$23.00
HS Asst. Principal .5	\$15.00	\$17.25
MS Principal	\$30.00	\$34.50
MS Asst. Principal	\$20.00	\$23.00
MS Asst. Principal .5	\$15.00	\$17.25
Intermed. Principal	\$20.00	\$23.00
Intermed. Asst. Principal	\$15.00	\$17.25
Elementary Principal x3	\$20.00	\$23.00
	\$20.00	\$23.00
	\$20.00	\$23.00
Food Service Supervisor	\$20.00	\$23.00
Health Care Coordinator	\$20.00	\$23.00
Athletic Director	\$20.00	\$23.00
→ Special Education Coordinator	\$20.00	\$23.00
Monthly Total	\$640.00	\$736.00

Reimbursement amounts will be reviewed annually
by the Superintendent or designee.

→ Date: October 25, 2004; Revised December 13, 2004
Effective January 1, 2005



Book	Policy Manual
Section	7000 Property
Title	WIRELESS COMMUNICATION ALLOWANCE AND STAFF USE OF WIRELESS COMMUNICATIONS DEVICES
Code	po7530.01
Status	Active
Adopted	June 22, 2009
Last Revised	June 25, 2012

7530.01 - **WIRELESS COMMUNICATION ALLOWANCE AND STAFF USE OF WIRELESS COMMUNICATIONS DEVICES**

Eligibility for Wireless Communication Allowance

Wireless communication devices ("WCDs") (i.e. cellular and wireless telephones, pager/beepers, personal digital assistants (PDAs), Blackberries/Smartphones, WiFi-enabled or broadband access devices, etc.) enable communication whenever a situation arises necessitating immediate contact, regardless of the person's location at the time. Therefore, the Superintendent and administrators who meet one or more of the following criteria are required as a condition of employment to own a WCD and obtain an appropriate service plan so that the WCD is available for use for business-related communications:

- A. their jobs require them to spend a considerable amount of time outside of their assigned office or work area during normal working hours and have regular access to telephone and/or Internet connections while outside their office or assigned work area;
- B. their jobs require them to be accessible outside of scheduled or normal working hours or to be contacted and respond in the event of an emergency; or
- C. their jobs consistently require timely and business critical two (2) way communication for which there is no reasonable alternative technology; (This is not intended to include occasional, incidental access or purely voluntary access such as checking e-mail from home).
- D. safety requirements indicate having a WCD is an integral part of meeting the requirements of the employee's job description.

Administrators who are required to have a personal WCD as a condition of their employment shall receive a monthly wireless communication allowance ("allowance"), up to an amount approved annually by the Board reimburse them for the costs associated with maintaining and using a personal WCD for business purposes.

Amount of the Allowance

The allowance shall consist of a monthly allowance of up to a specific dollar amount for wireless telephone service.

The allowance is not intended to compensate the employee's dollar-for-dollar cost for wireless service. Under no circumstances will the monthly allowance be more than the cost of the employee's monthly service plan for his/her WCD.

The allowance does not constitute an increase to base pay, and will not be included in the calculation of percentage increases to

base pay due to annual raises, job upgrades or benefits based on a percentage of salary, etc. The Board will pay only the Board-approved allowance even if actual monthly costs exceed the allowance. If the amount of the allowance needs to be changed because of documented business purpose, the employee should notify the Superintendent by submitting a new Wireless Communication Allowance Request Form.

No allowance will be paid when the employee is on an unpaid leave status, or is on an extended paid leave during which timely, business-essential communications are not likely to be necessary.

To be eligible to receive the allowance, beginning no later than August 1st annually, each covered administrator and staff member making application for the allowance, must submit to the Superintendent a Wireless Communication Allowance Request Form 7530.01 F1, including a copy of his/her most recent monthly invoices for his/her wireless service plan to substantiate the existence of the plan and a document identifying the telephone number of his/her WCD (including any pin number associated with a Blackberry device) so that the employee may be contacted as the need arises.

The Superintendent should use knowledge of each employees' duties (e.g. the projected number of minutes of monthly business-related calls, and whether the employee requires Internet/data service) and budget considerations to determine the amount of monthly allowance to recommend to the Board for each employee. In determining the amount of the allowance to recommend to the Board, the Superintendent may take into consideration the cost of the basic equipment, whether Internet/data service is needed, and the cost of the employee's monthly wireless service plan.

Allowance Is Not Considered Taxable Income

Provided the employee maintains and uses his/her personal WCD for business purposes as described herein, the allowance should not be considered additional income to the employee (i.e., the allowance will be treated as a non-payroll reimbursement of a business expense – similar to mileage reimbursements – and no payroll taxes will be withheld from the employee's paycheck for the amount of the allowance and the amount of the allowance will not be reported as wages on the employee's year-end W-2 statement). Additionally, staff members who receive an allowance are not required to submit a log documenting their business-related use of the WCD. For determination of individual taxability, employees should check with their tax advisor.

Employee's Responsibilities

The employee is responsible for choosing his/her WCD, the voice and/or data plan, and the wireless service provider. Since the WCD is the property of the employee, the WCD may be used for personal calls (see below concerning the making of personal calls during work time) and be combined or enhanced with other personal plans (i.e. the employee may also, at his/her own expense, add extra services or equipment features, as desired). The employee is responsible for paying all monthly service charges in full and on time. The Board does not accept any liability for claims, charges, or disputes between the service provider and the staff member. Because the employee is personally responsible for the WCD, any replacement for loss or damage will be at the expense of the employee. Such replacement or repair must be completed promptly and the Superintendent must be notified if the employee will not be available by their WCD for a period of time.

Employees should contact the carrier through which they purchased their WCD and purchase their wireless service for support.

Changing or Ending a Wireless Service Contract Early

If prior to the end of a wireless service contract, a personal decision by the employee results in the need to end or change the WCD contract, the employee will bear the costs of any fees associated with the change or cancellation.

If prior to the end of a wireless service contract, the employee's misconduct, or misuse of the WCD, results in the need to end or change the WCD contract, the employee will bear the costs of any fees associated with the change or cancellation.

If prior to the end of a wireless service contract, the Board determines to reduce or cancel (unrelated to employee misconduct) the employee's monthly allowance, the Board will bear the cost of any fees associated with the change or cancellation. For example, if the employee is reassigned and/or his/her duties are changed, and the WCD is no longer needed for business purposes, if the employee does not want to retain the current contract, changes or cancellation fees will be reimbursed by the Board.

When selecting the duration of his/her wireless service contract, the employee should take into consideration the length of his/her Board-approved employment contract and not select a duration of the wireless service contract that exceeds the employment

contract. If the employee is nonrenewed or voluntarily resigns while the wireless service contract is still in effect, the Board will not be responsible for any fees associated with the employee's decision to subsequently change or cancel the contract.

Once the allowance is given to the employee to purchase a device, the WCD remains the employee's property. However, upon termination, nonrenewal or resignation, the Board will immediately discontinue the monthly allowance.

Safe Use of Wireless Communications Devices

Employee safety is a priority of the Board, and responsible use of WCDs includes safe use. Texting or e-mailing on a WCD while driving is prohibited.

In situations where job responsibilities include regular driving and accepting of business calls, the employee should consider the use of hands-free equipment to facilitate the provisions of this policy.

Duty to Maintain Confidentiality of Student Personally Identifiable Information - Public and Student Record Requirements

Employees are subject to all applicable policies and guidelines pertaining to protection of the security, integrity and availability of the data stored on their WCDs.

Wireless communications, including calls, text messages, instant messages, and e-mails sent from WCDs, may not be secure. Therefore, employees should use discretion in relaying confidential information, particularly as it relates to students.

Additionally, wireless communications, including text messages, instant messages and e-mails sent and/or received by a public employee or school official using this/her personal WCD may constitute public records if the content of the message concerns District business, or an education record if the content includes personally identifiable information about a student. Wireless communications that are public records are subject to retention and disclosure, upon request, in accordance with Policy 8310 – Public Records.

Wireless communications that are student records should be maintained pursuant to Policy 8330 – Students Records. Finally, wireless communications and other electronically stored information (ESI) stored on the staff member's personal WCD may be subject to a Litigation Hold pursuant to Policy 8315 – Information Management. Staff are required to comply with District requests to produce copies of wireless communications in their possession that are either public records or education records, or that constitute ESI that is subject to a Litigation Hold.

Except in emergency situations, employees are prohibited from using WCDs to capture, record or transmit the words (i.e. audio) and/or images (i.e. pictures/video) of any student, staff member or other person in the school or while attending a school-related activity, without express prior notice and explicit consent for the capture, recording or transmission of such words or images. Using a WCD to take or transmit audio and/or pictures/video of an individual without his/her consent is considered an invasion of privacy and is not permitted, unless authorized by the building principal or Superintendent.

WCDs, including but not limited to those with cameras, may not be possessed, activated or utilized at any time in any school situation where a reasonable expectation of personal privacy exists. These locations and circumstances include but are not limited to locker rooms, shower facilities, restrooms, classrooms, and any other areas where students or others may change clothes or be in any stage or degree of disrobing or changing clothes. The building principal has authority to make determinations as to other specific locations and situations where possession of a WCD is absolutely prohibited.

Personal Use of WCDs While at Work

Board employees may carry personal WCDs with them while at work including while operating Board equipment, but are subject to the following restrictions:

- A. Excessive use of a WCD for personal business during work hours is considered outside the employee's scope of employment and may result in disciplinary action.
- B. Employees are personally and solely responsible for the care and security of their personal WCDs. The Board assumes no responsibility for theft, loss, damage, or vandalism to WCDs brought onto its property, or the unauthorized use of such

devices.

At no time may any WCD be utilized by an employee in a way that might reasonably create in the mind of another person an impression of being threatened, humiliated, harassed, embarrassed or intimidated.

Potential Disciplinary Action/Termination of the Allowance

Violation of this policy may constitute just cause for disciplinary action up to and including termination. Use of a WCD in any manner contrary to local, State or Federal laws will constitute misuse, and will result in immediate termination of the allowance.

Employee Use of Board-Owned WCDs

The District will provide Board-owned WCDs to certain employees who require specific equipment or similar technology to perform District functions (e.g., school safety, physical plant maintenance, etc.) and never expect to use these devices for personal use. The Superintendent must approve such exceptions. The user may be called upon to verify the accuracy of each monthly bill and certify the usage as appropriate. Any costs of personal business use may be deducted from an employee's paycheck. Any cell phone use discrepancies will be resolved by the Business Services Department. Telephone usage is subject to State audit.

If a personal call inadvertently occurs, restitution must be made to the District, at the current overage rate per minute. Adopted 6/22/09

Revised 11/16/09

Revised 6/25/12

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